

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

THERESA SMITH HENDERSON,

Petitioner

VS.

DAVID HENDERSON,

Respondent

) Case Number: FMS-25-387591

) Hearing Date: April 30, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

NOTICE OF MOTION AND DECLARATION FOR JOINDER; REQUEST FOR ORDER RE:
JOINDER OF PARTY, NAME DAVID HENDERSON AS FATHER

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Theresa Henderson (Mother) filed a Petition for Custody and Support on 8/20/2025. Mother alleges in the Petition that Respondent David Henderson is the father of Aaliyah Ranae Smith Dalton (DOB: 6/2/2013) and Elijah Noel Smith Henderson (DOB: 11/20/2014). Mother asks the Court to remove Edward James Dalton's name from Aaliyah's birth certificate, add Respondent's name to Aaliyah's birth certificate, and change Aaliyah's name to Aaliyah Ranae Smith Henderson. Mother attached to the Petition a DNA Test Report dated 2/9/2022 which purportedly shows that Respondent has a 99.99% probability of being Aaliyah's biological father; a copy of Aaliyah's birth certificate which lists Edward Dalton as her father; a copy of Elijah's birth certificate which shows Respondent as Elijah's father' and a marriage certificate showing that Petitioner and Respondent married on 10/15/2016 (after both children were born).

- 2) According to the Amended Proof of Service of Summons filed on 8/20/2025, the Petition, Summons, and blank Response were personally served on Respondent by SASH Attorney Karin Alm at the Civic Center Courthouse on 8/20/2025.
- 3) On for hearing is Mother's Request for Order and Notice of Motion and Declaration for Joinder filed 1/29/2026. Mother asks that the Court join Edward James Dalton as a party to this proceeding, make a finding that Respondent is the father of Aaliyah and Elijah, order that Edward Dalton's name be removed from Aaliyah's birth certificate, add Respondent's name to Aaliyah's birth certificate, and change Aaliyah's name to Aaliyah Ranae Smith Henderson.
- 4) On 1/29/2026, Mother filed an Application for Order for Posting asking the Court for permission to serve her Request for Order and Motion for Joinder on Edward Dalton by posting. Mother attached a declaration to her Application for Order for Posting which states that she became pregnant in late 2012 and that she was residing in shelter in or about January 2013, Mother states she met Edward Dalton at the shelter and briefly entered into a relationship with him. Mother states she was already pregnant when she met Edward Dalton and that Edward Dalton was aware that she was pregnant when they met. Mother also states that Edward Dalton was married at the time she met him. Mother states Edward Dalton and his wife came to the hospital on the day Aaliyah was born. Mother states that Edward Dalton stated at the hospital, "I came here to see if I'm the dad." Mother states that she does not know how Edward Dalton's name came to be listed on Aaliyah's birth certificate and she does not believe Edward Dalton signed a Voluntary Declaration of Parentage. Mother states she has had no contact with Edward Dalton since that day in the hospital.
- 5) On 2/24/2026, the Court issued an Order for Posting and ordered Mother to serve on Edward Dalton the Request for Order, Motion for Joinder, and related pleadings via posting at the Civic Center Courthouse and to thereafter mail those documents to the shelter where Mother states she and Edward Dalton previously resided.
- 6) There is no Proof of Service on file evidencing Mother's compliance with the Court's Order for Posting.
- 7) There is also no Proof of Service on file evidencing service of Mother's Request for Order and motion for joinder on Respondent.

1 8) Neither Respondent nor Edward Dalton have filed any pleadings in this matter to date.

2 9) The Court also notes there are two related cases in this matter.

3 a. In related Case No. FPT-16-377025, a Stipulation and Order was filed on 4/19/2026
4 awarding joint legal custody of Aaliyah and Elijah to David Henderson and Mother and
5 awarding sole physical custody of the children to Mother. The stipulation also provides
6 that the children will reside with Mother and that David Henderson may request visitation
7 at any time pursuant to Mother's agreement. On 6/6/2018, David Henderson filed a
8 Request for Order seeking sole legal and physical custody of the children; however,
9 neither party appeared at the readiness hearing and the matter was dropped from calendar.
10 That was the last event that occurred in the FPT case.

11 b. In related Case No. FDV-22-816136, on 2/10/2022, Mother filed a Request for Domestic
12 Violence Restraining Order against David Henderson. Mother requested that Aaliyah and
13 Elijah be additional protected parties and that she be awarded sole legal and physical
14 custody. Mother alleged that David Henderson abused her throughout their relationship,
15 beginning in 2006 or 2007 through January 2022. Neither party appeared for the hearing
16 and the matter was dropped from calendar. That was the last event that occurred in the
17 FDV case.

18 **B. Findings and Order**

19 1) The hearing on Mother's Request for Order and Motion for Joinder filed 1/29/2026 is hereby
20 continued to **Tuesday, 7/14/2026 at 9:00 AM in Dept. 404** for lack of Proof of Service.

21 2) By the deadlines set forth in the Code of Civil Procedure, Mother shall comply with the Order for
22 Posting filed 2/24/2026. In addition to the documents listed in the Order for Posting, Mother shall
23 also post the following documents and mail the following documents to Hamilton Families
24 shelter:

25 a. Application for Order for Posting filed 1/29/2026

26 b. Findings and Order After Hearing for the 4/30/2026 hearing date (which will be mailed to
27 Mother)

28 3) By the deadlines set forth in the Code of Civil Procedure, Mother shall have the following
29 documents served on Father:

- a. Request for Order filed 1/29/2026
- b. Motion for Joinder (FL-371) filed 1/29/2026
- c. Application for Order for Posting filed 1/29/2026
- d. Blank Responsive Declaration (FL-320)
- e. Tentative Ruling Instructions
- f. Findings and Order After Hearing for the 4/30/2026 hearing date (which will be mailed to Mother)

- 4) Mother must file Proofs of Service demonstrating compliance with the orders set forth above in advance of the next hearing date.
- 5) Mother is strongly encouraged to seek assistance from the ACCESS Center. Information for contacting the ACCESS Center can be found here: <https://sf.courts.ca.gov/access-legal-self-help-center>.
- 6) The Court will prepare the Findings and Order After Hearing.